

GJVD010057532025



Received on : 12/08/2025
Registered on: : 12/08/2025
Decided on : 13/08/2025
Duration :

IN THE COURT OF 12th ADDITIONAL DISTRICT JUDGE,
VADODARA.

Criminal Misc. No.2302 of 2025

Exh.:_____

APPLICANT :

Kalpesh D Patel
Residing at Bhuvel Tower,
Khambat, District Anand.

Versus

RESPONDENTS:

1. State of Gujarat,
Through DGP, Vadodara.
2. HDFC Bank Limited
Through Authorized personal
N P Patel
residing at Second Floor,
Aditya Complex, Nizampura, Vadodara.

Appearances:

- Mr. A J Chauhan, Ld. Advocate for Applicants.

- Mr. K. M. Joshi, Ld. APP for the State (Respondent No 1).
- Mr. H. K. Patel, Ld. Advocate for the State (Respondent No 2).

**APPLICATION FOR CONDONING DELAY UNDER SECTION 5 OF
THE LIMITATION ACT.**

:: J U D G M E N T ::

1. The present application is filed for condoning of delay of 14 days in filing appeal against the Judgment and order passed below in Criminal Complaint No.6903/2023 the Hon'ble 3rd Additional CJM, Vadodara (hereinafter as 'learned Trial Court'). The learned Trial Court had convicted the accused for the offence under Section 138 of NI Act.
2. After admitting this application as CRMA, notices were issued to other side wherein the respondent number 2 had appeared through learned Advocate and had objected this application orally. The respondent number 1 had appeared through Learned DGP wherein he had also prayed for rejecting the present application on the basis that the delay is not explained.

3. This court has duly heard the learned Advocates for the parties on record and had perused the record accordingly.
4. Before going into the merits, it seems important to deal with Section 5 of Limitation Act. It provides that an appeal can also be preferred after limitation gets over, when the party show sufficient cause to the court which restrained the party from filing appeal. It is well settled principle of law that "Sufficient cause" should be considered with pragmatism in justice oriented approach rather than technical detection of sufficient cause for explaining every day's delay. The proof by sufficient cause is a condition precedent for exercise of the extraordinary discretion vested in the Court. The expression "sufficient cause" is adequately elastic to enable the court to apply the law in a meaningful manner which sub-serves the ends of justice. Perusing the record, it appears that the reason shown by the appellant is not satisfactory as ignorance of law is not excusable. Although 'ignorance of law is not an excuse' in our country, but looking to the nature of 'sufficient cause', it should receive a liberal construction. The Ld. Trial Court had accorded reason that neither the

appellant nor Ld. Advocate had remained present and had done nothing in furtherance to proceed with the matter. Going by the application, it appears that if the present application will be allowed, it will give a chance to the appellant to proceed with the appeal which will satisfy the principle of Natural Justice. Hence, following order:-

:: ORDER ::

- Present application is hereby allowed.
- Delay of 14 days in filing present Criminal Appeal is hereby condoned accordingly for the applicant after payment of Rs.1000/- (One Thousand) as cost to be deposited to DLSA, Vadodara.
- After the cost be deposited, the present appeal is to be registered as CRA and notice be issued to other side.

Signed and pronounced in open Court today on
this **13th** day of **August, 2025**.

13/08/2025
Vadodara.

(Romit Anilkumar Agrawal)
12th Additional Sessions Judge,
Vadodara.
[Code No. GJ-00933]